

Judgment Sheet

**IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT**

Writ Petition No.573-Q of 2022

Muhammad Latif Vs. *The State and another*

JUDGMENT

Date of hearing:	01.02.2022
Petitioner by:	Mr. Rehan Malik, Advocate.
Respondents by:	Mian Muhammad Shahid Akhtar, Assistant Attorney General along with Musarrat Ayub, Sub Inspector F.I.A Bahawalpur.

RAHEEL KAMRAN, J.- Through this writ petition, the petitioner seeks quashing of the First Information Report No.214/21 dated 27.12.2021 (“F.I.R.”) registered against him for the offences under Sections 419, 420, 468, 471 & 109 PPC at Police Station Federal Investigation Agency (“FIA”), Bahawalpur on complaint of Munir Ahmed, Sub-Inspector Circle FIA, Bahawalpur (respondent No.3).

2. Learned counsel for the petitioner states that the impugned F.I.R. is false and based on *mala fide*; that the alleged occurrence has never taken place; that no scheduled offence under the Federal Investigation Agency Act, 1974 (“Act”) has been specified in the F.I.R.; that no evidence of preparing any forged document is available on the record; that respondents have no authority to lodge the impugned F.I.R. against the petitioner rather at the most the matter comes within the jurisdiction of local police; that the petitioner is being victimized by the complainant. Reliance has been placed on judgment of the Hon’ble Supreme Court in the case of Director General FIA and others v. Kamran Iqbal and others (2016 SCMR 447).

3. On the other hand, learned Law Officer contends that the offences alleged against the petitioner are scheduled offences which are cognizable by the FIA under Section 3(1) of the Act; that the petitioner was caught red handed and sufficient incriminating material was recovered from him at the spot and that no case for quashing of the F.I.R. has been made out.

4. Arguments heard. Available record perused.

5. The main plea taken by learned counsel for the petitioner is that due to non-existence of the alleged offences in the Schedule, FIA has no jurisdiction to register and investigate the impugned FIR on its own rather at the most, it can refer the matter to the local police, therefore, the primary question for determination by this Court is whether the impugned F.I.R. has been registered without lawful authority, hence, liable to be quashed?

6. In the instant matter, the prosecution's case, as alleged in the F.I.R. is that on 27.12.2021, during Computer Based Test ("C.B.T.") conducted at the Virtual University Campus, Bahawalpur near Welcome Chowk, Alnoor Plaza, Railways Station Road, Bahawalpur for recruitment in the FIA, the petitioner was found to be suspicious candidate and upon verification of his identity card, FIA enrolment card and Covid-19 vaccination card, the photo affixed on the FIA enrolment card did not resemble him. On preliminary inquiry, his real name was disclosed to be Muhammad Latif son of Hifiz Muhammad Ramzan and that he was taking the said test in place of one Sana Ullah son of Faiz Ullah Saqib.

7. The nature and scope of jurisdiction of the FIA is governed by Section 3(1) and Schedule to the Act read with preamble thereof, which embodies its purpose, object and reads as follows:-

"Whereas it is expedient to provide for the constitution of a Federal Investigation Agency for the investigation of certain offences committed in connection with matters concerning the Federal Government, and for matters connected therewith, it is hereby enacted as follows:"

8. It is well settled by now that although preamble to a statute is not operative part thereof, however, the same provides a useful guidance for determining the purpose and intention of the legislature behind the enactment. There is no cavil with the proposition that the FIA has been established/constituted for investigation of certain offences committed in connection with matters concerning the Federal Government, and for matters connected therewith. Such is discernable from the preamble of the Act reproduced herein above.

9. Section 3(1) of the Act, which governs establishment or constitution of the FIA and regulates jurisdiction thereof provides as under:-

“3. Constitution of the Agency.(1) Notwithstanding anything contained in any other law for the time being in force, the Federal Government may constitute an Agency to be called the Federal Investigation Agency for inquiry into, and investigation of the offences specified in the Schedule, including an attempt or conspiracy to commit, an abetment of any such offence.”

10. Through the Act, the FIA, in terms of Schedule to the Act, has been granted jurisdiction to take cognizance in respect of several offences under the Pakistan Penal Code, 1860 (“P.P.C.”) which are cognizable by the local police also. Keeping in view the intent of the Act, as spelt out from the preamble, and in order to avoid any conflict of jurisdiction, it has been held by the Hon’ble Supreme Court in the case of Director General FIA and others v. Kamran Iqbal and others (2016 SCMR 447) to the effect that for the FIA to exercise its jurisdiction in the matter of offences enumerated in the Schedule to the Act, there has to be some nexus between the offences complained of and the Federal Government.

11. The offences under Sections 419, 420, 468 & 471 PPC, specified in the impugned F.I.R., are included in the Schedule to the Act. Additionally, the offence of abetment punishable under Section 109 PPC has also been made cognizable by the F.I.A under Section 3 of the Act. The offence of ***cheating by personation*** has been prescribed under Section 416 P.P.C. in the following terms:-

“A person is said to “cheat by personation” if he cheats by presenting to be some other person, by knowingly substituting one person for another, or representing that he or any other person is a person other than he or such other person really is.”

12. In the instant case, the impugned FIR was registered against the petitioner when allegedly he was appearing in the C.B.T for recruitment in the FIA in personation of one Sana Ullah, therefore, the impugned F.I.R. *prima facie* discloses commission of the said offence against the agency of the Federal Government. The superintendence and administration of the FIA vest in the Federal Government in terms of Section 4(1) of the Act. The FIA was, therefore, possessed of lawful authority to take cognizance in this case, register the impugned F.I.R. and investigate the same.

13. Reliance of learned counsel for the petitioner on the case of Director General FIA and others v. Kamran Iqbal and others (2016 SCMR 447) is not helpful to the petitioner inasmuch as the said precedent is distinguishable on facts. In the said case, FIA had no jurisdiction in the matter as the dispute was between the two individuals in respect of a purely business transaction and there was not the remotest involvement of the Federal Government or for that matter any government or any governmental entity. In the instant case, however, the scheduled offences have been allegedly committed not against any private person but the agency of the Federal Government.

14. Whether or not the alleged offence has been committed by the petitioner, requires investigation, which falls within the jurisdiction of the investigating agency i.e. FIA. Additionally, while exercising constitutional jurisdiction, this Court cannot determine the falsehood or otherwise of the allegations leveled against the petitioner, which comes within the exclusive jurisdiction of the trial court. Reliance in this regard is placed on judgments of the Hon’ble Supreme Court in the cases of Habib Ahmad vs. M.K.G. Scott Christian (PLD 1992 S.C 353) Imtiaz Ahmad v. Govt. of Pakistan (1994 SCMR 2142); Col. Shah Sadiq v. M. Ashiq and others (2006 SCMR 276); Seema Farooq v. The State (2008 SCMR 281) and Dr. Sikandar Ali Mohi-ud-din v. Station House Officer and others (2021 SCMR 1846). Needless to observe that the petitioner

has every opportunity to present his defence before the investigating officer in accordance with law and even thereafter, he can avail the alternate remedy before the learned trial court under Section 249-A or 265-K of the Criminal Procedure Code, 1898. Reliance in this regard is placed on judgment of the Hon'ble Supreme Court in the case of Muhammad Saleem Bhatti v. Syed Safdar Ali Rizvi and 2 others (2006 SCMR 1957).

15. As regards allegation of *mala fide*, suffice it to observe that it is well settled that *mala fide* must be pleaded with particularity. Vague and general allegations have no value in the eye of law. In the instant case, neither the petitioner has pleaded particulars of *mala fide* of respondent No.3 or his motive to falsely implicate the petitioner nor he has placed any material on record to establish the same.

16. In view of the forgoing, no case for the exercise of extraordinary jurisdiction under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 is made out. Accordingly, the instant writ petition, is **dismissed** being devoid of any merit.

JUDGE